

**STATE OF MICHIGAN
14TH CIRCUIT COURT MUSKEGON COUNTY
FAMILY DIVISION**

Michael E. Kobza Hall of Justice
990 Terrace St, Muskegon, MI 49442

Hon. Jenny L. McNeill
Case No.: 2024-001507-DC

ANDREW JAMES PIGORS,
1977 Whitehall Rd, Trlr 17,
Muskegon, MI 49445
andrewjpigors@gmail.com
231-903-5690
Plaintiff,

vs.

EMILY ANN WATSON,
2160 Garland Dr,
Norton Shores, MI 49441
watsone104@msn.com
Defendant.

AFFIDAVIT IN SUPPORT OF MOTION FOR RECONSIDERATION

I, Andrew James Pigors, being duly sworn, declare and state as follows:

Personal Information

My name is Andrew James Pigors, and I reside at 1977 Whitehall Rd, Lot 17, North Muskegon, MI 49445.

Purpose of Affidavit

This affidavit is submitted in support of my Motion for Reconsideration of the Court's order dated 007/17/2024. It describes the remedies that were taken to address all of the courts previous concerns raised during trial. I will also bring to the courts attention the errors in law, and decisions made against My son and our best interests.

Why Am I, as the Plaintiff, Being Treated Like a Criminal?

As the plaintiff in this case, I approached the court in good faith, seeking a fair and just resolution that prioritizes the best interests of my son, Lincoln. My intention has always been to provide a stable, loving environment where Lincoln can thrive, and to ensure that my rights as his father are respected and upheld. However, throughout this process, I have been made to feel as though I am on trial—treated not as a concerned and dedicated parent, but as a criminal. This perception arises from several aspects of the court proceedings:

Assumption of Wrongdoing: Despite my consistent record of providing a safe and nurturing environment for Lincoln, there seems to be an underlying assumption that I have done something wrong due to the false accusations made by the defense. This is evident in the court's drastic reduction of my parenting time by two-thirds, 182.5 days a year, to 79. 79 days a year only equates to 3.4 years of his 2-18yr old life. Without being given a thorough explanation or consideration of the lack of negative factors in my care for Lincoln. Such a significant decision, seemingly made without concrete evidence of harm or neglect, suggests an unwarranted presumption against me.

Unfair Scrutiny: I have faced intense scrutiny, with every aspect of my life, actions, and decisions being examined under a microscope. This level of scrutiny is typically reserved for cases where there is a history of criminal behavior or neglect, neither of which applies to me. It feels as though I am being forced to defend myself against baseless accusations, rather than being given a fair opportunity to present my case.

Lack of Concrete Evidence: The defense has not presented any physical evidence to support their accusations against me. Instead, their case has relied heavily on third-party opinions and subjective statements—none of which have been substantiated by actual proof. Despite this, the court has seemingly taken these unfounded claims at face value, to my detriment. This raises the question: why am I being treated as if I am guilty of something when there is no credible evidence to suggest that I am?

Punitive Measures: The decision to reduce my parenting time from 182.5 days to just 79 days per year feels punitive, rather than protective of Lincoln's best interests. Such a drastic reduction suggests that I am being punished, despite the fact that I have not been found guilty of any wrongdoing. It is difficult to reconcile this decision with the reality of my situation—a father who has done everything in his power to be a loving, responsible, and present parent.

Emotional and Psychological Impact: Being treated like a criminal has taken an emotional and psychological toll on me, and by extension, on my ability to be the best father I can be. It is deeply distressing to be placed in a position where I must constantly defend my character and my intentions, rather than being recognized for the consistent and positive role I play in Lincoln's life.

Request for Fair Treatment

I am not asking for special treatment—only for fairness and objectivity. I came to the court seeking to protect my rights as Lincoln's father and to ensure that his best interests are upheld. Instead, I have been treated as though I am the one who needs to be monitored and restricted, without any evidence to justify such treatment. I respectfully ask the court to reconsider its approach in this case, to recognize the lack of evidence against me, and to treat me as a dedicated parent rather than a criminal. The decisions made in this court will have lasting effects on Lincoln's life and our relationship. I urge the court to ensure that these decisions are based on facts and fairness, not on assumptions or unsubstantiated claims.

Lack of Thorough Explanation and Subjective Rulings by the Court

Under MCL 722.27, Michigan law mandates that any modification to a custody or parenting time order must be supported by clear and convincing evidence that the change is in the best interests of the child. This legal standard is in place to ensure that the child's well-being is prioritized and that any significant changes to their living situation are justified by objective evidence and a thorough evaluation of all relevant factors.

However, in this case, the court failed to provide a thorough and objective explanation for its decision. The ruling appears to have been based on subjective opinions rather than a detailed analysis of the statutory factors outlined in MCL 722.23, which guide the determination of a child's best interests. Specifically, the court did not:

1. *Provide a Detailed Analysis:* The court did not offer a clear, step-by-step analysis of each of the best interest factors as required by MCL 722.23. These factors include the emotional ties between the child and each parent, the capacity of each parent to provide love, affection, and guidance, and the stability of the home environment, among others. A thorough consideration of these factors is essential to ensure that the decision is rooted in the child's best interests rather than in subjective judgments.

2. *Justify the Reduction in Parenting Time:* The decision to reduce my parenting time from 182.5 days to 79 days per year represents a drastic and life-altering change for both me and my child. Yet, the court did not adequately justify how such a reduction serves Lincoln's best interests. Michigan law, as outlined in MCL 722.27, requires that any reduction in parenting time be supported by clear and convincing evidence that it is in the child's best interests. The court's failure to provide a comprehensive explanation leaves it unclear how this significant reduction was determined to be warranted.

3. *Consider the Lack of Evidence from the Defense:* It is particularly troubling that the defense has not produced a single piece of actual physical evidence to substantiate the accusations and egregious statements made against me. Every piece of evidence presented by the defense was based on third-party opinions or subjective statements, with no concrete proof to back up the claims. This lack of credible evidence raises serious concerns about the fairness of the court's ruling, as decisions of this magnitude should be based on verifiable facts, not hearsay or uncorroborated assertions.

4. *Address the Impact of the Ruling:* The court also failed to consider or explain the potential negative impact of this ruling on Lincoln's relationship with me. The bond between a father and his child is a crucial component of the child's emotional development, and any decision that severely limits this bond must be thoroughly justified. The court did not provide an explanation of how the ruling aligns with the goal of maintaining and nurturing Lincoln's emotional ties with both parents, as emphasized in MCL 722.23.

5. *Consider the Lack of Negative Factors:* Since Lincoln's birth, there has not been a single issue or incident arising from my care for him. My dedication to providing a stable, loving, and supportive environment for him has been consistent and unwavering. The court did not address this continued devotion and stability, nor did it explain why a reduction in my parenting time was necessary despite the absence of any negative factors.

In light of these omissions, it is evident that the court's ruling to eliminate my parental and custodial rights, while simultaneously reducing my parenting time by two-thirds, was not supported by a thorough and objective analysis as required by Michigan law. Moreover, the court's reliance on unsubstantiated claims presented by the defense, without any physical evidence, undermines the fairness and validity of the decision.

Therefore, I respectfully request that the court reconsider its ruling and provide a detailed explanation of how it determined that such a significant reduction in my parenting time serves Lincoln's best interests. It is essential that custody decisions be based on clear, objective criteria and that they support the child's right to maintain strong and meaningful relationships with both parents.

2. Parental Relationship with Lincoln David Watson

- *Unwavering Dedication:* As the proud father of Lincoln David Watson, born on November 9, 2022, I have been deeply committed to his well-being and development from the very beginning. Every decision I make, every step I take, is driven by my desire to provide Lincoln with the love, security, and support he needs to thrive.

- *Stable, Loving Environment:* Over the past year, I have consistently provided Lincoln with a stable and nurturing home environment. From preparing nutritious meals to participating in his medical appointments and celebrating his milestones, introducing and encouraging an active outdoor lifestyle involving t-ball, and soccer. I also encourage music, I bought him a drumset, as well as a piano which are in his room and he plays daily. I am fully engaged in every aspect of his daily life. From reading and brushing out teeth after bathtime before bed at 730pm, to coloring and building with our blocks and flashcards. My dedication is not just about fulfilling responsibilities—it's about being the best father I can be, every single day.

3. Stable Employment and Health

- *Employment at Shape Corp:* I am now gainfully employed full-time as a Material Handler at Shape Corp, a position that provides me with the financial stability and flexibility needed to prioritize my parenting responsibilities. My stable employment ensures that I can offer Lincoln the security and consistency he deserves. By continuing to pay the bills on time.

- *Clean Bill of Health:* My primary care physician has confirmed that I am in excellent health, both physically and mentally. This clean bill of health enables me to fully engage in my role as Lincoln's father, without any limitations.

4. The Importance of 50/50 Joint Physical Custody

- *Critical for Lincoln's Well-being:* A 50/50 joint physical custody arrangement is not just ideal—it is essential for Lincoln's best interests. According to MCL 722.23, the court must prioritize the child's emotional ties, stability, and overall well-being. Equal parenting time allows Lincoln to benefit from the consistent love, guidance, and support of both parents, which is vital for his emotional and psychological development.

- *Ensuring Stability and Balance:* MCL 722.27 emphasizes that any changes in custody must prioritize the child's best interests. Reducing my parenting time by two-thirds would severely disrupt the stability and balance that Lincoln currently enjoys. Maintaining a 50/50 arrangement will ensure that he continues to receive the consistent care and attention he needs from both parents.

5. Continued Devotion and Stability

- *Flawless Track Record:* Since the day Lincoln was born, there has not been a single issue or concern regarding my care for him. I have consistently provided a safe, loving, and supportive environment, demonstrating my unwavering devotion to his happiness and well-being. I was able to overcome every obstacle, and barrier, and provide for my son. My focus has always been, and will always be, on what is best for Lincoln.

7. Exhibit List

- Exhibit B: Drop-off and Pick-up Journal
- Exhibit C: Compilation of Photos Showcasing My Bond with Lincoln
- Exhibit D: Clean Bill of Health from Primary Care Physician
- Exhibit E: Employment Verification Letter from Shape Corp
- Exhibit F: Rental arrears payment proof/verification

8. Conclusion

- Lincoln is at the heart of everything I do. The bond we share is irreplaceable, and his well-being is my highest priority. Based on the new evidence provided and my continued devotion to Lincoln's best interests, I respectfully request the Court to reconsider the current custody arrangement and grant a 50/50 joint physical custody order. This arrangement will ensure that Lincoln continues to grow up in a stable, loving environment with the full support of both his parents.

I affirm that the statements made in this affidavit are true to the best of my knowledge, information, and belief.

Dated: August 15, 2024

Andrew James Pigors

Subscribed and sworn before me this 15th day of August, 2024.

Notary Public

My commission expires: December 31, 2027

This version emphasizes your deep commitment and love for Lincoln, making it clear that his well-being is your top priority. The legal references and exhibits are integrated to support your case effectively while maintaining a compelling narrative. Let me know if you need any further adjustments!